

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CV 09

462

SONIA McLARTY

Plaintiff,

COMPLAINT IN CIVIL CASE

-against-

JURY TRIAL DEMANDED
CASE #:

CITY OF NEW YORK, P.O. NICHOLAS HORON
P.O. JOHNNY ARROYO, SGT STEVEN WEISS, P.O.
KATHERINE CASTANDENA, DET. CHRISTOPHER
COLON, DET. SALVATORE FORMICA

Defendant(s).

BLOCK, J.

J. ORENSTEIN, M.J.

FILED
IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.
★ FEB 04 2009 ★

BROOKLYN OFFICE

Plaintiff, SONIA MCLARTY, by her attorney, Adrian A. Ellis, Esq., alleges as follows:

I. INTRODUCTION

1. This action is brought pursuant 42 U.S.C. Section 1983 to vindicate the civil rights of SONIA McLARTY. The plaintiff contends that the defendants maliciously abused the process against her by the assault and battery of plaintiff. Defendants were acting under the color of the law and pursuant to municipal customs practices and policies when they undertook the aforementioned acts against plaintiff.

II. JURISDICTION

2. This court has jurisdiction over this action under 42 U.S.C Section 1983 and the 4th, 5th and 14th Amendment of the Constitution of the United States, Venue is proper, as the operative events occurred within this judicial district.

III. PARTIES

3. Plaintiff, SONIA McLARTY, resides in Kings County and she sues on her own behalf.
4. Defendant the City of New York is a municipality that is incorporated under the laws of the State of New York. Its principle place of business is located in New York, New York, its actions and those of its agents must conform to the dictates of the Constitution of the United States. It may sue and be sued , and at all times relevant herein, acted under color of state law and pursuant to its own policies, practices and customs.
5. Defendant SGT WEISS, P.O. KATHERINE CASTANDENA at all relevant times, were employed by the City of New York as police officers. Their actions must conform to the dictates of the Constitution of the United States. They are sued in their individual capacities for violating the plaintiff's civil rights while acting under the color of state law and/or acting pursuant to policies, practices and customs of the City of New York.

IV. FACTUAL AVERMENTS

6. Defendants, all of whom were acting under the color of state law and/or pursuant to policies, practices and customs of the City of New York, violated plaintiff's civil rights in the following ways:
 - a. On January 13, 2007 at approximately 5:20 A.M. at 838 Hancock Street, Brooklyn New York 11233 the plaintiff was returning home from a social function after receiving a phone call from her sister that their brother was being physically abused by police officers at their home. When the plaintiff arrived at the scene she saw her brother,

Dustin, face down on the sidewalk bleeding profusely from his face and with two officers standing over him. One of the police officers, had his knee in Dustin's back. The plaintiff out of concern for her brother's physical condition asked the police if they can't take it easy on her brother. The police officers ignored the plaintiff at which point the plaintiff remarked that white police officer's "come into the neighborhood and don't know how to treat black people." In response defendant WEISS asked the plaintiff how she would like it if he called her the "N" word. The plaintiff replied that defendant WEISS "can go ahead". The plaintiff and defendant WEISS continued to engage in verbal jousting, with the plaintiff complaining about what she believed to be the unnecessary and inappropriate treatment of her younger brother. The plaintiff's sister told her that since she had her cell phone she should take pictures of what the police were doing to their brother Dustin. The plaintiff took her cell phone and commenced to take pictures from a kneeling position. Defendant WEISS punched the plaintiff in her face and then repeatedly punched her in the stomach and upper body. Once the defendant was punched in the face she became slightly disoriented and fell to the ground. Defendant WEISS ordered that the plaintiff be arrested, P.O. CASTADENA then handcuffed the plaintiff who was placed under arrest. The arrest was effected without a warrant, probable cause or any other legal basis for an arrest to be made. Defendant WEISS then took plaintiff's cell phone and erased the pictures she had taken of the incident involving her brother.

7. Plaintiff was then taken to the precinct at the direction of defendant WEISS where she was held for approximately twenty four hours before being transported to central booking so charges could be presented before the judge. The plaintiff spent approximately forty eight hours incarcerated before she was released. For the next

twenty months the plaintiff had to defend herself from the charges of assault in the third degree; obstructing governmental administration in the second degree; and resisting arrest. On September 8, 2008 the charges were dismissed pursuant to the New York C.P.L. § 30.30 by the Honorable Judge Jeong of the Kings County Criminal Court.

8. As a result of the defendant's action the plaintiff was suspended from her job as a school crossing guard for twenty nine days and was precluded from any promotion for six months after the twenty nine day suspension ended.

FIRST CLAIM FOR RELIEF

9. Defendant's action against the plaintiff was undertaken pursuant to municipal policies, practices and customs of using physical force against the citizenry when deemed necessary.
10. As a result of the defendant's actions the plaintiffs is fearful of all police officers and is unable to respect the police force and the purported purpose to "protect and serve".
11. The conduct of the defendants in maliciously abusing the process against the plaintiffs was outrageous and was done with a total and utter reckless indifference to the plaintiff's protective rights, entitling plaintiff to an award of punitive damages as against the individual defendants.
12. The force used against the plaintiff's was brutal, excessive and utterly unnecessary.
13. Solely as a result of these actions, plaintiff was:
 - a. Physically abused by police.
 - b. Suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation;
 - c. Has continued to suffer from mental and emotional distress as a result of the defendants and;

- d. Has been caused to fear repetition of the unlawful conduct by the defendant or by other police officers.
 - e. Was unable to maintain her employment due to the nature of the charges that were levied against her and sustained damages for loss of earnings during this period.
14. Each of the defendants, jointly and severally, acted maliciously, willfully and wantonly under the color of law, and violated the rights of the plaintiff;
- a. To be free from unreasonable search and seizure
 - b. To be free from excessive force
 - c. To be free from assault and battery
 - d. To be free from intentional infliction of great emotional distress
 - e. To due process of law, with respect to the proper interest in her cell phone and the photographs therein
15. All of these rights are secured to plaintiff by the provision of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by the U.S.C. §§ 1983, 1988.
16. As a result of defendants conduct plaintiff has suffered damage and injury.

SECOND CLAIM FOR RELIEF

17. Plaintiff repeats and reiterates each and every allegation contained in the paragraphs of this complaint designated "1" through "16" inclusive, with the same force and effect as though each were fully set forth at length here.
18. The defendant's intentionally and for the purpose of causing severe mental distress conducted themselves towards the plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

19. The defendants recklessly conducted themselves towards the plaintiff in manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

PRAYER

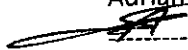
Plaintiff demands judgment against the defendant's for:

1. Compensatory damages in the amount of that the trier of the facts considers just and fair.
2. Punitive and exemplary damages in an amount that the trier of the fact considers sufficient to punish and deter each defendant against whom these damages are awarded;
3. Costs of suit
4. Reasonable attorney fees; and
5. All other relief that is just and proper

Dated: Brooklyn, New York
January 27, 2009

Respectfully Submitted

Adrian A. ELLIS, LLC.,

A handwritten signature in black ink, appearing to be 'Adrian A. Ellis', is written over a horizontal dashed line.

Adrian A. Ellis(5276)

